

Defendant Reveille Farms, LP (“LP”), and offered to haul off the scrap metal, including obsolete farm equipment, for a share of the proceeds. (Plaintiff’s Separate Statement, 3-7.) It is undisputed that Defendant Mathies hired Plaintiff to assist him in removing and transporting the obsolete farm equipment from Defendant LP’s property. (*Id.* at 8, 14.) Although Chope selected the obsolete farm equipment to be scrapped and placed them in two locations on the property for collection by Defendant Mathies (*id.* at 59), it is undisputed that no employee, agent, or representative of Defendant LP assisted in the collection of the obsolete farm equipment from where they had been placed for collection (*id.* at 15), had any input on the selection of Plaintiff in assisting Defendant Mathies (*id.* at 58), supervised the disassembling, loading, and removing any property from Defendant LP’s property (*id.* at 67), or instructed Defendant Mathies where to sell the obsolete farm equipment (*id.* at 69). It is undisputed that Plaintiff used his own truck to remove equipment. (*Id.* at 70.) Plaintiff alleged he was injured while disassembling and collecting a grain auger in the performance of the agreement. (Complaint, ¶¶ 15-16, 19.)

Consequently, the burden shifted to Plaintiff to establish a triable issue of fact supporting an exception to the *Privette* doctrine. Plaintiff has not met this burden. Plaintiff has not included in his responsive separate statement “any other material facts [he] contends are disputed”. (Code Civ. Proc. § 437c(b)(3).) Plaintiff has not presented any admissible evidence showing either that the risk of harm posed by the grain auger was “concealed” and Defendants withheld critical information regarding that concealed hazard or that Defendants retained some control over the work and exercised that control in a manner that affirmatively contributed to Plaintiff’s injury.

MOHAN MATURI v. DISCOVERY BUILDERS, INC. and MONTESSA VACAVILLE, LLC

Case No. CU25-04379

Motion for Preliminary Injunction

TENTATIVE RULING

Plaintiff MOHAN MATURI moves for a preliminary injunction ordering Defendants DISCOVERY BUILDERS, INC. and MONTESSA VACAVILLE, LLC “temporarily restrained from interfering with Plaintiff’s completion of the water-connection and related utility work serving the residence located at 1220 Virgo Road, Vacaville, California, provided such work is performed pursuant to applicable City of Vacaville permit, inspection, and testing requirements” and to “permit Plaintiff and Plaintiff’s contractors reasonable access over those limited portions of Defendant’s property reasonably necessary to complete the water-connection and related utility work.” (Proposed Order filed 5/21/26.)

Code of Civil Procedure section 527, subdivision (a) permits the issuance of a preliminary injunction at any time before judgment if a complaint or affidavits show that sufficient grounds exist. To obtain a preliminary injunction a plaintiff ordinarily must present evidence of the irreparable injury or interim harm he will suffer if an injunction is not issued.

(*Iloh v. Regents of University of California* (2023) 87 Cal.App.5th 513, 522.) The court evaluates the propriety of a preliminary injunction by weighing the likelihood that the moving party will ultimately prevail on the merits of their claim and the relative interim harm to the parties from the issuance or non-issuance of the injunction. (*Readylink Healthcare v. Cotton* (2005) 126 Cal.App.4th 1006, 1016.) A preliminary injunction is improper where harm may be fully compensated by damages. (*Tahoe Keys Property Owners' Assn. v. State Water Resources Control Board* (1994) 23 Cal.App.4th 1459, 1471.)

Preliminarily, no cause of action appears to be pending in the First Amended Complaint that is linked to the request for a temporary restraining order or preliminary injunction. On this basis alone, the requested relief is denied.

Second, Plaintiff does not present evidence demonstrating that he faces irreparable harm caused by Defendant that cannot be remedied in the absence of the proposed injunction.

Plaintiff contends he does not have water service at his property at 1220 Virgo Road. The evidence is undisputed that Defendants performed under the settlement agreement and installed the water utility line. (Motion 2:26-27.) Notably, Defendants did not have an obligation under the terms of the agreement to cause the actual hook up of new water utility. That responsibility belonged solely to Plaintiff's successor in interest. (Young Decl., Exh.C, ¶ 5.) Presumably, Plaintiff (or its predecessor) secured that permission from the City of Vacaville and had access to water (for which it was apparently billed by City).

Plaintiff chose to undertake construction work to expand the scope of the use of Plaintiff's property to include expansion of the existing home to a duplex and the addition of an ADU. Plaintiff itself caused the utility line to be disconnected. Further, Plaintiff apparently did not communicate with Defendant about its intent to conduct this construction work within the roadway improvements, resulting in a cease and desist letter from Defendant.

In the interim, City has now issued a "Stop Work" Notice and apparently now contends that a previously issued permit was issued in error. The court understands this relates to expansion of Plaintiff's use. This seems a dispute between Plaintiff and the City, not Plaintiff and DISCOVERY BUILDERS. Any injury to Plaintiff seems to be tied to reliance on a permit apparently issued "in error" by City.

Both parties inherited an imperfect settlement agreement. While there was an agreement to an access easement and that Defendant would install a water line, nothing appears to expressly address a utility easement. Should a utility easement be implied given Defendant's agreement to install the utility easement? (See *George v. Goshgarian* (1983) 139 Cal.App.3d 856, 860; Civil Code § 1104.) Neither party directly addresses this legal argument.

Ultimately, the immediate dilemma was not caused by Defendant, but by Plaintiff. A preliminary injunction is not appropriate. The parties should meet and confer to reach a written agreement to permit Plaintiff to repair the damage it caused to the roadway and to restore the previously existing water line (if indeed it is no longer operable) so that Plaintiff

can ensure immediate access to the prior water use. It seems Defendants are willing to do so, but upon terms that ensure public safety and indemnification to Defendants. (Opposition, p. 5.) Notably, the court makes a distinction between the prior water utility use and any potential expanded water utility use or connection that did not previously exist. Should Defendant fail to negotiate such repair terms in good faith, Plaintiff may wish to amend its complaint and renew its application for a preliminary injunction.

Plaintiff's motion for preliminary injunction is DENIED.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5EazI6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002